



U.S. Department
of Transportation

Research and
Special Programs
Administration

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400 Seventh Street, S.W.
Washington, D.C. 20590

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DOT-E 10708

1. Sun Refining and Marketing Company, Philadelphia, Pennsylvania, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of two DOT Specification 111A100W1 tank car tanks, containing a residue of Petroleum naphtha, which have defective interior heating coils and provides no relief from any regulations other than as specifically stated.
2. BASIS. This emergency exemption is based on Sun Refining and Marketing Company's application of November 13, 1991, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for the protection of life and property.
3. HAZARDOUS MATERIALS (Descriptor and class). Petroleum naphtha, UN 1255, classed as a flammable liquid or class 3.
4. PROPER SHIPPING NAME (49 CFR 172.101). Petroleum naphtha.
5. REGULATION AFFECTED. 49 CFR 173.29(c)(1) and 174.67(k).
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES. Packagings prescribed are two DOT Specification 111A100W1 tank car tanks, NATX 81166 and NATX 81168, meeting all DOT requirements (49 CFR Parts 100-299), except that the interior heating coils are cracked. Interior heating coil outlet plugs have been installed to prevent the release of product.
8. SPECIAL PROVISIONS.
 - a. Shipment for NATX 81166 must be between Sun Refining and Marketing Company, Toledo, Ohio, and G.E. Railcar, Sayre, Pennsylvania, a distance of approximately 200 miles, using the most direct route via Norfolk Southern Corporation and Consolidated Rail Corporation.

- b. Shipment for NATX 81168 must be between Schenectady Chemical Company, Freeport, Texas, and G.E. Railcar, Texarkana, Arkansas, a distance of approximately 300 miles, using the most direct route via Union Pacific Railroad Company.
- c. Each tank car must be marked "DOT-E 10708" in four inch letters on a contrasting background above the DOT specification number.
- d. The Federal Railroad Administration is to be notified if any unusual incident occurs, such as derailment or exterior tank damage, during the movement by contacting the:

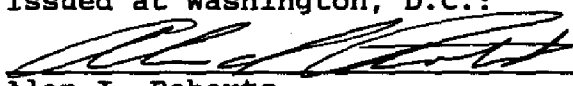
Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

- e. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or package failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. January 13, 1992.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemption Branch.

Dist: FRA.